
MEAGAN DONAHUE et al. v. WELLTOWER, INC. et al.
Case No. CU25-12031

Application For Pro Hac Vice Admission of Teresa Pike Tomlinson

TENTATIVE RULING

The application is GRANTED.

WPT and PSL's Motion to Compel Arbitration and Stay Action

TENTATIVE RULING

Defendants WELLTOWER PEGASUS TENANT, LLC and PSL ASSOCIATES, LLC ("Moving Defendants") move to compel arbitration of Plaintiffs MEAGAN DONAHUE ("MEAGAN") and CORTLAND ROUNDS's ("CORTLAND") first amended complaint in this elder abuse and wrongful death action. Plaintiffs allege that Moving Defendants, as well as Defendants WELLTOWER OP LLC., WELLTOWER PEGASUS LANDLORD, LLC, SOJOURN HOSPICE AND PALLIATIVE CARE – EAST BAY, LLC dba BRISTOL HOSPICE – EAST BAY, BRISTOL HOSPICE, LLC, and MORGAN WHINERY, allowed their mother Jean Rounds ("Decedent") to suffer harm at the hands of other residents of Moving Defendants' care home and/or failed to properly respond to Decedent's injuries, resulting in Decedent's death.

Legal Standard. A party to an arbitration agreement may petition the court to compel arbitration if it alleges the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate. (Code Civ. Proc., § 1281.2.) In ruling on a petition to compel arbitration, the trial court shall order parties to arbitrate if it determines that a valid agreement to arbitrate the controversy exists and the dispute between the parties falls within the scope of the agreement. (*Luxor Cabs, Inc. v. Applied Underwriters Captive Risk Assurance Co.* (2018) 30 Cal.App.5th 970, 977 (*Luxor Cabs*).) Arbitration should be compelled unless it can be said with assurance that the arbitration clause in question is not susceptible to an interpretation covering the asserted dispute. (*EFund Capital Partners v. Pless* (2007) 150 Cal.App.4th 1311, 1320-1321.) The party seeking arbitration bears the burden of proving the existence of an arbitration agreement by a preponderance of the evidence, and the party opposing arbitration bears the burden of proving by a preponderance of the evidence any defense. (*Ibid.*)

Existence of Agreement to Arbitrate; Equitable Estoppel. A party asserting the existence of an arbitration agreement does not have to introduce the agreement into evidence; he may instead set forth its provisions in the petition. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219 (*Condee*).) The key thing is that